

ORDINANCE NO. _____

ENTITLED: "ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED NORTHWEST OF THE INTERSECTION OF WESTERN HILLS BOULEVARD AND YELLOWSTONE ROAD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Jeff Wallace and Ed Murray, owners of Lots 1 and 2 and a portion of a 20 foot vacated alley being adjacent to and west of said Lots 1 and 2, Block 1, Prairie Hills Addition, Laramie County, Wyoming, have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Adam E. Deschler, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 12045; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned MU Mixed-Use by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

MARIAN J. ORR, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published: _____

ANNEXATION REPORT

114 and 124 Western Hills Blvd.

Annexation Summation

CASE NUMBER(s): UDC-20-00231

SUBDIVISION CODE: PHA 01

PREPARED BY: Mark Christensen

PUBLIC HEARING: July 13, 2020 – City Council

MEETING DATES:	City Council:	July 13, 2020	1 st Reading
	Public Service Committee:	July 21, 2020	
	City Council:	July 27, 2020	2 nd Reading
	Public Service Committee:	August 4, 2020	
	City Council:	August 10, 2020	3 rd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Master Application; Petition to Annex (Signed by at least 51% of property owners who own at least 51% of land to be annexed); Annexation Map; Soils Report (requirement fulfilled by deferral request); Signed clearance from the Board of Public Utilities

RECOMMENDATION: Staff recommends approval of the annexation application.

ANNEXATION REPORT & STAFF REPORT

114 and 124 Western Hills Blvd. Annexation

CASE NUMBER(s): UDC-20-00231 **SUBDIVISION CODE:** PHA 01
PREPARED BY: Mark Christensen
PUBLIC HEARING: July 13, 2020 (City Council)

OWNER: Wyoming Number 1 Properties Inc. Pegasus Ranch LLC
5827 Yellowstone Rd. PO Box 1204
Cheyenne, WY 82009 Cheyenne, WY 82003

State Highway Commission, The
PO Box 1708
Cheyenne, WY 82003

AGENT: AVI: Brad Emmons (307) 637-6017
1103 Old Town Lane #101
Cheyenne, WY 82009

PROJECT: 114 and 124 Western Hills Blvd. Annexation and Zone Change

WORK DESCRIPTIONS: A proposed annexation for Lots 1 and 2 and a Portion of a 20 Foot Vacated Alley Being Adjacent to and West of said Lots 1 and 2, Block 1, Prairie Hills Addition, Laramie County, Wyoming

LOCATION:

1. Legal Description: Lots 1 and 2 and a Portion of a 20 Foot Vacated Alley Being Adjacent to and West of said Lots 1 and 2, Block 1, Prairie Hills Addition, Laramie County, Wyoming
2. Location: Northwest corner of the intersection of Western Hills Blvd. and Yellowstone Rd.
3. Address: 114 and 124 Western Hills Blvd.

SIZE: 0.75 acres

CURRENT ZONING: County MU Mixed-use
PROPOSED ZONING: MUB Mixed-Use Business Emphasis
EXISTING LAND USE: Residential/Office
PROPOSED LAND USE: Residential/Office

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Office	MUB	City
South	Bank, Office	CB	City
East	Office	CB	City
West	Residential	MUB	City

EXECUTIVE SUMMARY:

This annexation application is for approximately .75 acres of land near the intersection of Western Hills Boulevard and Yellowstone Road. This application was submitted along with a zone change application. Any land annexed into the City is required to be given a City zone district. The zone change application proposes changing the zoning from County MU Mixed-Use to MUB Mixed-Use Business Emphasis.

PlanCheyenne is supportive of annexing this land into the City. This land is located within the Urban Service Boundary and is designated in the future land use plan as Mixed-Use Commercial Emphasis. Furthermore, the proposed annexation is currently a County enclave, meaning it is entirely surrounded by City limits. City services will provide environmental quality benefits to both the current and future residents.

As with any expansion there will be an impact on service provision within the City. However, as this is a small expansion adjacent to current City Services, the impact on City services will be minor. The property is surrounded by City limits on all sides.

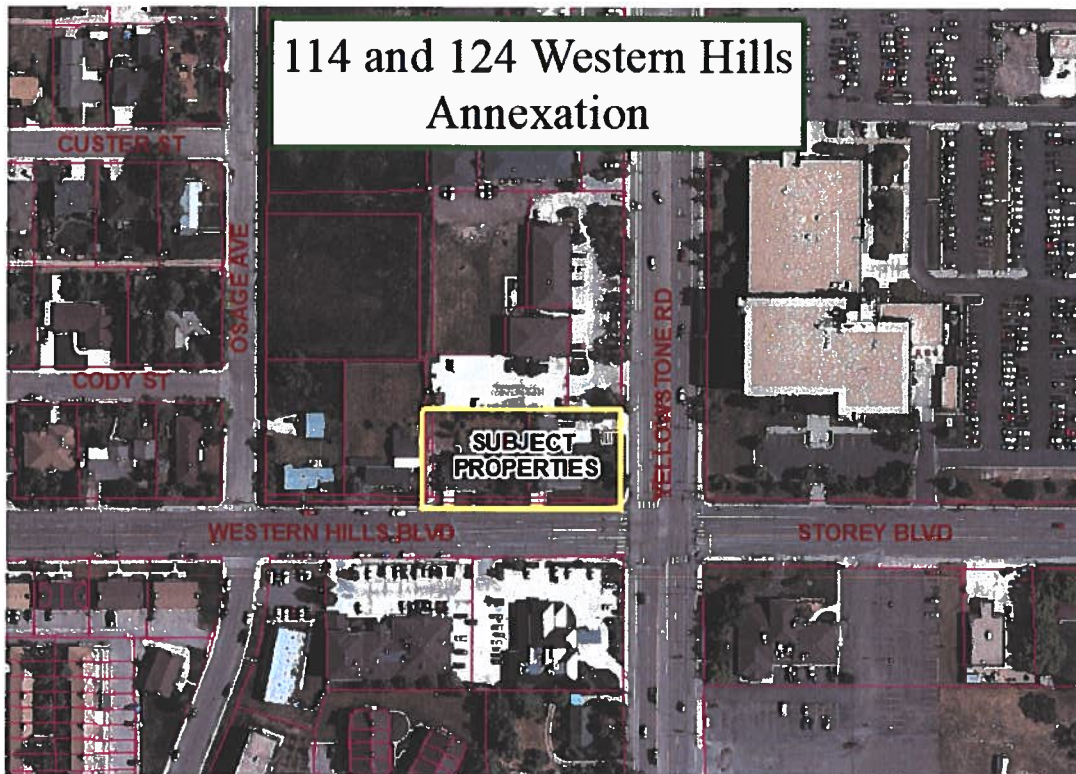
Due to meeting the review criteria found in Wyoming Statute 15-1-402, staff recommends approval of this annexation.

LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map
Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting subject property located northwest of the intersection of Western Hills Boulevard and Yellowstone Road

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEWS OF SUBJECT PROPERTY:



Photograph #1 – Image of Subject Property, 114 Western Hills Boulevard
Source: Development Office

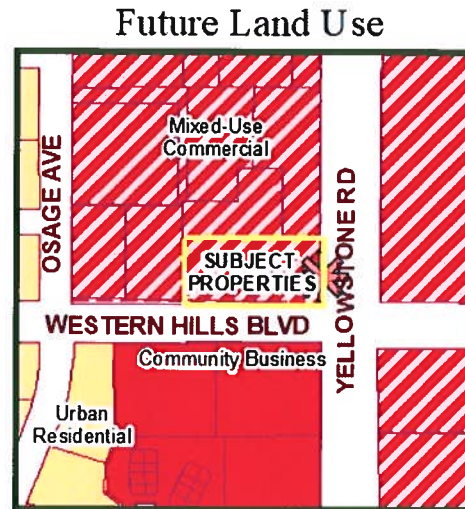


Photograph #2 – Image of Subject Property, 124 Western Hills Boulevard
Source: Development Office

PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

This annexation is consistent with PlanCheyenne.

The future land use map identifies the subject property, and the immediate surrounding parcels, as Mixed-Use Commercial Emphasis. Mixed-Use Commercial includes a wide variety of land uses and activities, but also including other employment, public, and residential uses. The proposed zone, MUB Mixed-Use Business Emphasis, will allow for the broad mix of uses called for by the Mixed-Use Commercial future land use map designation. Furthermore, PlanCheyenne encourages the annexation of County enclaves.



In addition to conforming with the future land use map contained within PlanCheyenne, the zone change request and annexation accomplishes several policies within PlanCheyenne, including the following:

Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS Cooperative Program

Policy 1.2.C: *Address annexations through duly adopted City/County annexation criteria, including measures to prevent future County "islands" within the Urban Service Boundary and treatment of existing enclaves.*

Assessment: The annexation and subsequent zone change will remove a County pocket within the City.

Policy 1.4.A: *Infill Opportunities: Support compatible infill development in existing neighborhoods and districts through the use of design standards- design guidelines in the County- to address the scale, height, and character of infill as it relates to existing development.*

Assessment: There is currently no proposed new development on the subject property at this time. However, should the properties ever redevelop, the zone change will support a wide variety of uses and redevelopment opportunities in the form of infill development.

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body must find that the following criteria are met (W.S. § 15-1-402 (a)):

COMMON WELFARE – *An annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town.*

The annexation of this property will increase the health, safety, and welfare of current and any future residents or tenants of the subject property. Residents and businesses will have full access to City services once the annexation is completed without detriment to surrounding property owners.

PART OF THE CITY – *The urban development of the area sought to be annexed would be constituted a natural, geographic, economic, and social part of the annexing city or town.*

This property will constitute a natural, geographic, economic, and social part of the city. The property is surrounded by developed land within City boundaries. The subject properties are considered a County enclave as they are surrounded by City limits. This annexation will constitute a logical expansion of the City by removing a County island. Furthermore, any future residents or tenants of the subject property will be seamlessly integrated into the economic and social parts of the community with the office park to the North and surrounding homes and businesses to the South, East, and West.

SERVICE EXTENSION LOGICAL EXPANSION – *The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed.*

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be available. Police and fire protection will be extended upon annexation. Connection to City water and sewer lines is possible upon annexation and application to the Board of Public Utilities.

CONTIGUOUS – *The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407.*

The properties that are proposed for annexation have a perimeter that is 100% contiguous with City limits. Contiguity is achieved along all sides.

City Limits



Map #4 – Current City Boundaries
Source: Cheyenne/Laramie County GIS
Cooperative Program

UTILITIES – *If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to service the annexed area pursuant to W.S. 15-1-410.*

Utility franchises are in place to serve the annexed area.

CERTIFIED MAILING – *The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405(a).*

A certified mailing was made to the landowners and public utilities on June 12, 2020, and the earliest confirmation of receipt was recorded on June 13, 2020. The public hearing for this annexation is scheduled for July 13, 2018. Twenty (20) business days prior to the announced public hearing is June 12, 2020.

ANNEXATION REPORT DATA: In compliance with W.S. § 15-1-402(c) the following information is provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. 15-3-202 (b) (ii).
- (ii) The total **estimated** cost of infrastructure improvements required of the landowners by the City related to the annexation is approximately \$3500 per household. Estimated costs include the connection of existing structures to sanitary sewer. Additional on- and off-site improvements may be required with subsequent development actions.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Police and Fire services will be provided immediately upon the recording of the annexation. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner. Development will require extension of water and sewer services, which are available to the subject property.
- (iv) Fees for water, sewer, and sanitation services are a variable amount for residential units, based upon volume and meter size. For single-family residential lots, total annual fees, including water, sewer and sanitation services, are **estimated** at \$1,200.
- (v) The current property tax mill levy imposed is 67.20 and projected property tax mill levy imposed by the city is 72.20.
- (vi) The infrastructure described in (ii) above includes improvements required within the existing boundaries of the municipality

REVIEW

Reviewing Agencies with Comments:

- Development (Lisa Pafford)
 - o **(FYI)** This will reduce the size of the county pocket and allow city services if future development is proposed.
- Environmental Health Department (Roy Kroeger)
 - o **(FYI)** Cheyenne City Ordinance 13.12.010 - 13.12.040; Laramie County Small Wastewater System Regulations; State of Wyoming Minimum Standards for Water Wells
 - The two homes have been serviced by pre-existing small wastewater systems. Annexation of the properties require connection to the public sewer system within thirty days of the annexation by this notice.
 - When connection is made to the public sewer system the pre-existing septic system shall be inspected by the Division of Environmental Health prior to covering the abandoned system.
 - If the existing wells are abandoned they shall be abandoned in accordance with the State of Wyoming Engineers Office Standards.
- Urban Planning (Mark Christensen)
 - o **(Complete)** Please ensure the legal description for the entire area annexed is included on the Annexation Map. This would include the WyDOT property to the south.

Reviewing Agencies without Comments:

- | | |
|--|--|
| - Black Hills Corp (Walter Fees) | - Metro Planning Office (Tom Mason and Chris Yaney) |
| - Board of Public Utilities (Linda Gunter) | - Police Department (Brian Kozak) |
| - Engineering Department – General (Sam Berta) | - Public Works (Nathan Beauheim) |
| - Engineering Department – Traffic (Anissa Gerard) | - Development Director (Charles Bloom) |
| - Engineering Department – General 2 (Wes Bay) | - Urban Planning – Greenway (Jeanie Vetter) |
| - Fire Department (Jim Schamerhorn) | - Urban Planning – Economic Development (Brendan Ames) |

Reviewing Agencies not Responding:

- | | |
|--|---|
| - CenturyLink (Kimberly Hessel and Darrin Klawon) | - County Attorney (Mark Voss) |
| - Charter (Bryan VanKirk) | - County Clerk (Laura Pate) |
| - City Engineer (Tom Cobb) | - County Planning (Nancy Trimble) |
| - Engineering Department – Drainage (Michael Vinson) | - County Public Works (Dave Bumann) |
| - Engineering Department – GIS/Tech (Joe Fisher) | - County Sheriff (Danny Glick) |
| - Community Recreation & Events (Sam Payne) | - County Assessor (Clarice Blanton and Kaycee Eisele) |
| | - Emergency Management Agency (Chuck Trimble) |

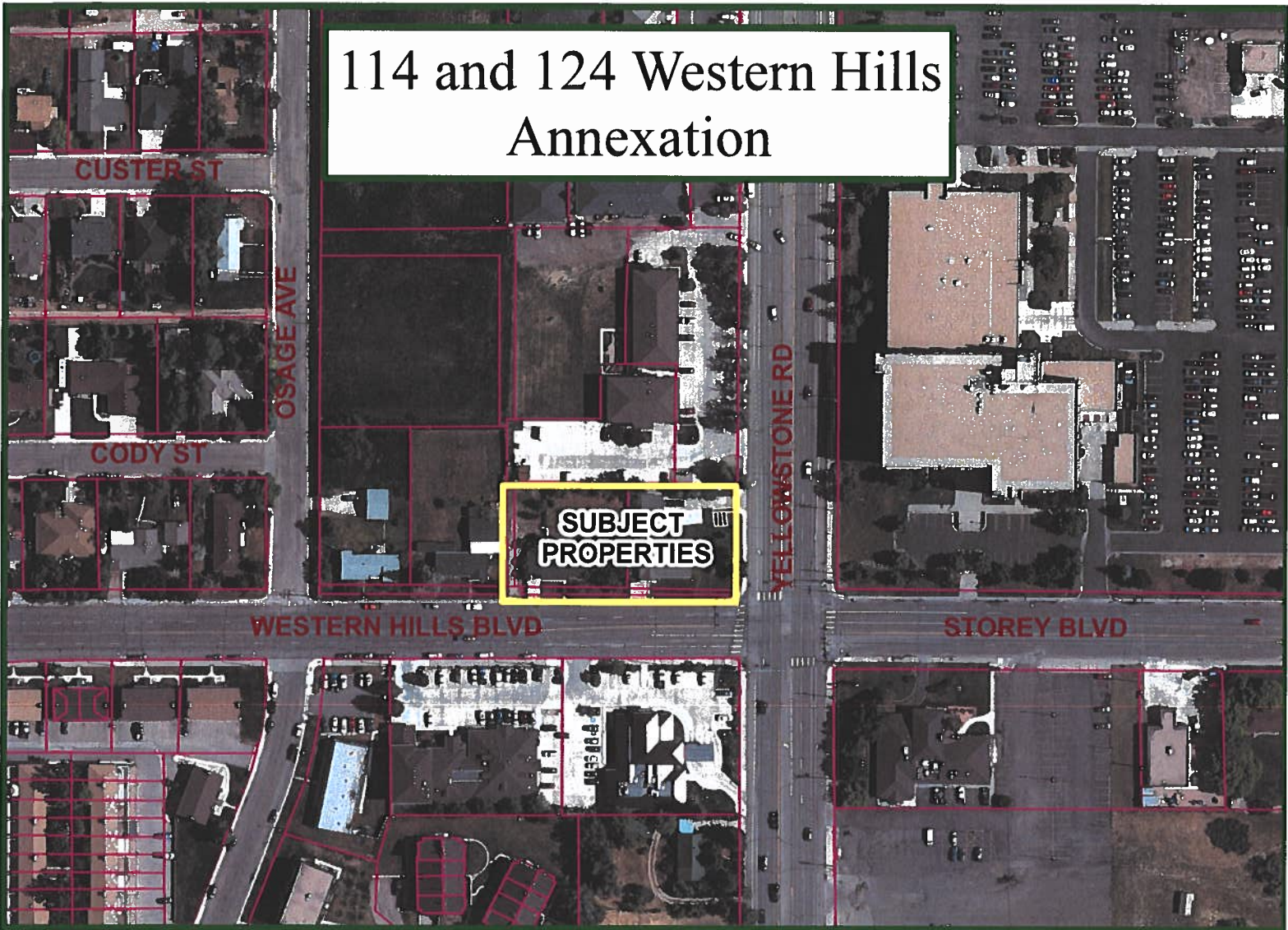
Other Comments Received:

- None

Attachments: Annexation Map – submitted by applicant
Aerial Map – produced by City staff

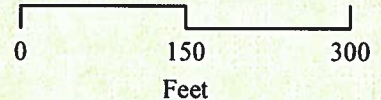
Cc: Agent
Owners
File

114 and 124 Western Hills Annexation

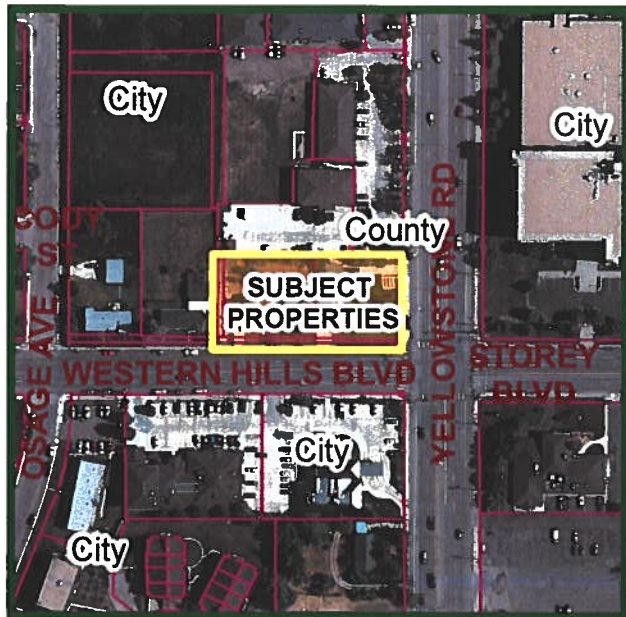


Application Number: UDC-20-00231
 Applicant: Wyoming # 1 Properties Inc.
 Applicant: Pegasus Ranch LLC
 Agent: Brad Emmons, AVI

Scale applies to
above map only



City Limits



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Future Land Use

